

Merchant Agreement

This Agreement is made on 2 June 2021 between arvato Financial Solutions, Gütersloher Straße 123, 33415 Verl, Germany (hereinafter "AFS") and Solstice Gaming Ltd, 12 Soho Square, London W1D 3QF, United Kingdom (hereinafter "Merchant"), together the "Parties".

1. Scope of Services

AFS shall provide the services described in Annex 1 (the "Services") to Merchant in accordance with this Agreement and the service levels agreed therein. Merchant shall provide all information reasonably required for the performance of the Services.

2. Term and Termination

The Agreement commences on the Effective Date for a fixed term of three (3) years. Thereafter either Party may terminate it at any time on six (6) months' notice to the end of a calendar quarter. Termination for good cause without notice remains reserved.

3. Fees and Payment

In consideration of the Services, Merchant pays the remuneration listed in the price schedule. Payment is due fourteen (14) days after invoice date. All amounts are exclusive of value added tax.

4. Limitation of Liability

Each Party's total liability arising out of this Agreement, whether in contract, tort or otherwise, is capped at EUR 250,000 per contract year. This cap does not apply to damages caused wilfully, to injury of life, body or health, or to breaches of confidentiality.

5. Confidentiality

The Parties undertake to treat as strictly confidential all business and trade secrets disclosed to them and not to make them available to third parties without prior written consent. Disclosure to professional advisers bound by statutory secrecy is permitted.

6. Data Protection

Where AFS processes personal data on behalf of Merchant, the Parties shall conclude a data processing agreement pursuant to Article 28 of the General Data Protection Regulation (GDPR). Both Parties shall implement appropriate technical and organisational measures to protect personal data.

7. Governing Law

The laws of Germany apply to this Agreement and to all claims arising from or in connection with it, to the exclusion of its conflict of law rules.

8. Dispute Resolution

The courts of Baden-Baden shall have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement.

9. Force Majeure

Neither Party shall be liable for any failure to perform its obligations where such failure results from events beyond its reasonable control, including natural disasters, war, pandemics or governmental action, provided that the affected Party notifies the other without undue delay.

10. Assignment

Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, which shall not be unreasonably withheld.

11. Audit Rights

Merchant may, upon thirty (30) days' written notice and no more than once per calendar year, audit AFS's compliance with this Agreement during normal business hours. AFS shall provide reasonable assistance and access to relevant records.

12. Anti-Corruption and Compliance

The Parties warrant that they have not offered, promised or granted any undue advantage to public officials or business partners in connection with this Agreement and will not do so. A breach of this warranty entitles the other Party to terminate without notice.

13. Change of Control

Either Party may terminate this Agreement with immediate effect if the other Party undergoes a change of control, meaning the acquisition of more than fifty percent (50%) of its voting rights by a third party.

14. Notices

All notices under this Agreement shall be in writing and delivered by registered mail or e-mail to the addresses set out above. Notices are deemed received on the next business day.

For arvato Financial Solutions:

Managing Director

For Solstice Gaming Ltd:

Authorised Signatory